CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, February 27, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, February 27, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-3 and 13-4 (Commissioner Kelley); pulled 13-2, 13-5, and 13-6 (Mayor Pigatt).

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes

Mayor Pigatt Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – January 9, 2019

City Clerk Flores requested to defer the minutes until the next regular commission meeting.

The commission agreed to the request.

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, announced a small business workshop hosted by the Orange Bowl Committee on Wednesday, March 6, 2019 at Florida Memorial University from 10:00 a.m. to 12:00 p.m. The event is free and open to the public.

10. PUBLIC PRESENTATION:

1. Stephen Hunter-Johnson, Esq.
   Independent Special Counsel
   Lydecker Diaz

Attorney Johnson spoke on the fact that his firm was retained pro bono specifically to look at the current city attorney's contract, the response from the oversight board regarding the contract, and the RFP for the selection of a new city attorney.

Commissioner Kelley suggested a special commission meeting this Friday to further address the city attorney's contract.

Commissioner Bass agreed with Commissioner Kelley to hold a special meeting.

Commissioner Burke also agreed.

Mayor Pigatt said holding the meeting on Friday would be an issue for him as he will be out of town, but he wants to be a part of the process. He asked if it can be pushed up to Monday so that he can be a part of the discussion.

Attorney Johnson also said it is his anniversary and he had plans already scheduled; he agreed with Monday being the day for the special commission meeting.

The dais agreed to move the suggested meeting to Monday.

City Clerk Flores asked for clarity on the time and date.

Mayor Pigatt said the meeting will be held on Monday, March 4, 2019 at 5:00 p.m. to address the city attorney's contract.

11. CITIZENS' INPUT:

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, provided the commission with a copy of the performance evaluation that is used at her place of employment. She heard in a previous meeting that this was an issue and took it upon herself to give this to the City as a guide for rating employee's performance. She asked that they look into it. She addressed the high water bills and said it looks like she was billed three times last month and twice this month. She asked that the mayor explain why this is happening.

Eric Redmon, 2766 NW 136th Street, Opa-locka, FL, said he is upset that there is an outsider pulling the strings of the commission and he does not like it. He does not like that the police department, code enforcement, the city clerk, and the H.R Director are being outsourced. He sent a message to Willis Howard that the City is not for sale.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said it appears that someone is spraying the alleys with Round Up spray and it affecting the residents. She asked that they look into the matter. She also mentioned that during the election, they said they would bring back Channel 77 and she has not seen it yet. She asked why a mayor and commission secretary was requested in the budget, but she sees a position for a legislative aide. She questioned what the position was and who was trying to bring someone in. She said the auditor came in and gave many recommendations, but she does not see where anyone is addressing any of them. She attended the session for the class action lawsuit and they made the City look foolish regarding the refund of deposits after the water accounts have been closed; they need to do better.

Randa Radd, 706 Sharar Avenue, Opa-locka, FL, asked the commission what types of grants were available for residents who wanted to preserve the historic value of their properties.

Mayor Pigatt asked the manager to speak on the water bill issue.

Acting City Manager Daughtrey said they are working on the water bill issue on a case by case basis until it is completely taken over by the county.

Mayor Pigatt informed the residents that there are things going on behind the scenes that affect the billing such as the current water billing lawsuit that is in litigation. This makes it difficult to address certain issues regarding the billing issues. The commission has asked the manager for consistent monthly workshops to address the billing issues and speak with residents. There is also a person on staff (Andrea Braynon) to work with residents to gain an understanding of the billing.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A 3RD AMENDMENT TO THE AGREEMENT WITH ANTHONY BRUNSON, P.A., FOR CERTIFIED PUBLIC ACCOUNTANT SERVICES, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Mayor Pigatt said he pulled the item so the residents can know this is an important step that is going on with the City and where we are. He asked the manager to expound.

Acting City Manager Daughtrey said this item is to ensure the audit is complete by March 31, 2019 in order to release one point five million dollars ($1,500,000.00) in funding that is being held by the state. There is twelve thousand dollars ($12,000.00) that needs to be paid right now so this process can be completed.

Mayor Pigatt asked what happens when the twelve thousand dollars ($12,000.00) is paid and when the thirty five thousand dollars ($35,000.00) is paid to the auditor.

Acting City Manager Daughtrey said they get the financial audits themselves and the thirty five thousand dollars ($35,000.00) gets the Comprehensive Annual Financial report (CAFR) and all of the others reports. He said if everything was done in a timely manner previously, then the City would not have to play catch up as it is doing right now. The next audit is for 2017 – 2018 and he will be doing it the same way. Moving forward it will be done as the state statute requires.

Mayor Pigatt said he is uncomfortable with where they were with the audits and the extra monies that need to be spent because the documents were not in order.

Acting City Manager Daughtrey said there were other practices done in the past and that is why they are in that position. He will insure this does not happen in the future.

Mayor Pigatt agreed and said he too hopes the City is not put in this position again.

Commissioner Kelley commended the manager for all of the work he has been doing to put processes in order so that necessary funds can be released for use.

Commissioner Bass asked the manager if he can assure that those responsible for the task are doing their jobs and are they competent enough.

Acting City Manager Daughtrey said the current staff was not here when this started so they cannot be held for what has happened. However, they are working and doing what needs to be done to correct this. He has also hired more employees with municipal experience to get the job done. While the previous employees had accounting experience, they lacked municipal experience and that is why the work was not performed effectively.

Vice Mayor Davis asked if the funds are budgeted for.

Acting City Manager Daughtrey said, "Yes." He said additional funds will be needed for the next audit because of the way things were being handled previously, but moving forward, it will cost less to have these standard processes completed annually.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes

Mayor Pigatt	Yes

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PAY DENNIS HORN AND GERMAN BOSQUE PURSUANT TO BINDING ARBITRATION ORDERS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Commissioner Kelley said he has concerns about what transpired with these cases, but here they are. His main concern is always avoiding litigation of this nature from taking place in the future.

City Attorney Brown said policies have to be put in place with the Police Department and the City Manager's Office so that these types of cases do not take place in the future.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

3 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY COMMISSION (OR THEIR AUTHORIZED PROXIES) TO OPERATE AS A BOARD OF INQUIRY TO INQUIRE INTO CURRENT AND PROSPECTIVE FISCAL STATUS AND PERSONNEL MATTERS OF THE CITY PURSUANT TO ARTICLE VIII, SECTION 2(B) OF THE FLORIDA CONSTITUTION, AND ARTICLE II, SECTION 2.5(5) OF THE CHARTER OF THE CITY OF OPA-LOCKA; PROVIDING FOR THE APPOINTMENT OF A SPECIAL MASTER; CONVENING THE BOARD OF INQUIRY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by City Attorney Brown.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis for discussion.

Mayor Pigatt said he sponsored the item so they could have a discussion on how to have an efficient respectable workplace. He said due to Sunshine Laws they are prevented from brainstorming on how best to govern the City and resolutions are brought to have these conversations in the sunshine. There have been a lot of conversations about the issues that have been going on in the City and he is challenged with trying to get a clear understanding of where the City is. Each and every department needs to be analyzed and a clear understanding needs to be presented of what is going on with the City. He asked his colleagues if they are having the same challenges.

Vice Mayor Davis agreed and said that there is a disconnect with receiving the information about the processes in the City. While he too wants clarity, he does not want the commission to be involved too far with the day to day operations of the City.

Commissioner Kelley said he does not like this item because like what the vice mayor said, it may thread into the day to day operations of the City and that is what the manager is for. A board of inquiry will require steps that have a cost and the City does not have any funds at this time to support the item. When you get into inquires, they can go all over the place and be costly, they also require staff and at this moment, the staff needs to focus on getting all of the audits done.

Mayor Pigatt said this is something that is just for discussion at this time. Without getting into day to day operations, the commission should know what is going on in the City without having to get information from hearsay in the community.

Commissioner Bass said at first she contemplated a yes, but after the mayor questioned it himself, she is swayed. While she also wants clarity, she is not for micro managing and if the employees are not doing their jobs, they should not be here.

This item was deferred by the sponsor.

4 (13-5). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING A DEADLINE FOR COLLECTION OF MONEY DUE TO THE CITY OF OPA-LOCKA FROM DELINQUENT UTILITY ACCOUNTS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he put the item forth to deal with collections before it is turned over to the county. He wanted it done before it did not take place and would like for it to be done now because it is needed. Commissioner Barbara Jordan has asked what was the City's intent regarding this in previous meetings and he would like the plan put in place now. There is potentially old debt there now and the City needs to come up with what the process for collecting delinquent accounts will be.

Mayor Pigatt said he pulled the item because he is uncomfortable with it in its original form and an amendment should be put in place and given to the manager. Being that there is pending litigation going on regarding the water bills, he does not want the manager a part of this process as it is detrimental to the City. He asked David Ritchie, Miami-Dade County, to come forward and speak on where the City is with the water billing and accurate assessments of the bills.

Mr. Ritchie said he agrees with what Commissioner Kelley is suggesting and they are currently working on it. He said he does not know that the City will still have the power to collect after the county takes over the billing. The county will only operate as an agent for the utility services and not collections as these are the City's customers and not the county's. There were some snags, but the county is moving forward with the implementation of billing City of Opa-locka residents and business owners. They are not moving forward as quickly as they would like to, but they are moving forward and the outcome will be good.

Mayor Pigatt asked the attorney what is his involvement with this legislation.

City Attorney Brown said the manager issued an affidavit in support of the plaintiffs in the lawsuit and he is concerned from a legal perspective because it could impact or influence how the suit is going. He recommended Kozyak Tropin & Throckmorton come in and defend the City and resolve any issues that may become a part of the litigation process.

Mayor Pigatt said he is uncomfortable with moving on this item at this time.

Commissioner Kelley said he brought the resolution because it appears at times that when the City asks for help, it does not follow through and that is why Commissioner Jordan questioned the City's intent previously. He wished the concern about the involvement of the manager would have been brought forth before now because it seems to have taken it in another direction.

This item was deferred by the sponsor.

5 (13-6). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO DEVELOP AN IMPLEMENTING ORDER FOR ORDINANCE 15-31, ARTICLE X SIGN REGULATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Commissioner Kelley said the mayor requested "teeth" on the item previously and that is why it was brought back with the proper wording, simply that.

Mayor Pigatt asked for a friendly amendment for a timeframe for the implementation order after workshops are held regarding the item so it will already be in place.

City Attorney Brown said Commissioner Kelley had not instructed him to include a time in the legislation and that is why it is not there.

Commissioner Kelley said he is fine with the amendment.

Mayor Pigatt confirmed the amendment for sixty (60) days.

Commissioner Bass agreed and said the earlier the better.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE CITY OF DAYTONA BEACH'S CONTRACT WITH INSTUFORM TECHNOLOGIES, LLC., FOR QUALIFIED PROFESSIONAL SERVICES TO ACHIEVE THE LS14 SERVICE BASIN CURED IN PLACE PIPE (CIPP) REHABILITATION IN THE CITY OF OPA-LOCKA IN AN AMOUNT NOT TO EXCEED ONE HUNDRED THIRTY-TWO THOUSAND SIX HUNDRED TWENTY DOLLARS AND TWENTY CENTS ($132,620.20); IN A FORM THAT IS ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

The motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. HEARINGS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A MINIMUM LOT COVERAGE (SIZE) VARIANCE FOR PROPERTY LOCATED AT 12900 NW 131ST AVENUE IN OPA-LOCKA AND IDENTIFIED BY FOLIO 08-2128-004-0471 IN THE I-2 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke for discussion.

Commissioner Burke said every time a variance or special exception is given, there is no follow up from the City to enforce this. Who will make sure of this?

Acting City Manager Daughtrey said normally a recommendation is put in from staff from Code Enforcement, Community Development, and Building and License and they are the ones who provide enforcement and maintenance.

Commissioner Kelley said he agrees with Commissioner Burke because he has pointed this out many times as well. He hopes the City will follow through with all matters including these types.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A FINAL SITE PLAN TO OPERATE A CONSTRUCTION COMPANY AT 12900 NW 131ST AVENUE IN OPA-LOCKA AND IDENTIFIED BY FOLIO 08-2128-004-0471 IN THE I-2 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Commissioner Burke asked if this was the same item they voted on to store bobcat equipment.

Mayor Pigatt said, "Yes.'

City Attorney Brown said that this is a companion item to the last ordinance that was discussed.

Commissioner Burke asked for clarity.

Community Development Director Gregory Gay said the first item is to approve the variance and the second one is the final site plan to operate the company. If the first one did not pass, then the second one could not be considered.

Commissioner Bass said she was in that area earlier today and videotaped how the trucks can tear up the street.

Mr. Gay said there will be impact fees paid by the company for building an office space at that location, but the fees will not be sufficient for infrastructure road improvements. The City can have a conversation with the company and come to an agreement regarding the roads.

Vice Mayor Davis said as a municipality, something needs to be put in place to hold business owners accountable and put measures in place to deal with the infrastructure.

Mayor Pigatt said he is hesitant to support this item because they just recently voted on changing variances. He said the City needs to do a better job of maintaining the roads and this will avoid the potential of having issues in the future.

Commissioner Kelley said he understands the mayor's concern, and if he feels that strongly about it, he should work with the attorney to put a moratorium in place until they can get a handle on the roadways.

There being no further discussion, the motion on the resolution passed by a 3-2 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	No
Mayor Pigatt	No

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A FINAL PLAN, AS ASPECIAL EXCEPTION, TO OPERATE AN AUTO SERVICE STATION AT THE SOUTH WEST CORNER OF NW 135TH STREET AND THE LEJEUNE DOUGLAS CONNECTOR IN OPA-LOCKA IDENTIFIED BY FOLIOS 08-2129-019-0010 AND 08-2129-019-0020 IN THE I-3 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Commissioner Kelley said that area already has a lot of traffic and he is concerned on how the traffic for this will go in or out.

Acting City Manager Daughtrey said Mr. Gay provided the October 2018 Traffic Impact Statement to the City previously and he knows what it entails.

Mr. Gay called upon Mr. Isaac from EGM, Inc. to come before the commission and provide clarity.

Mikah Isaac, EGM, Inc., 12021 NW 4th Street, Plantation, FL, said he is here on behalf of the applicant and is ready to answer any questions the commission may have.

Commissioner Kelley asked what the main point of entrance or exits is for this property.

Mr. Isaac said right now it is a vacant lot and nothing has been built as of yet.

Commissioner Kelley said that he is concerned with all of the traffic that will cause congestion in that area and the City will have to deal with it.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	Yes
Mayor Pigatt	Yes

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A DEVELOPMENT AGREEMENT WITH NOB HILL ENTERPRISES, INC., FOR AN AUTO SERVICE STATION AT THE SOUTH WEST CORNER OF NW 135TH STREET AND THE LEJEUNE DOUGLAS CONNECTOR IN OPA-LOCKA IDENTIFIED BY FOLIOS 08-2129-019-0010 AND 08-2129-019-0020 IN THE I-3 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to pass the resolution.

There being no discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	Yes
Mayor Pigatt	Yes

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN OF HIGH SEAS TRADING COMPANY, FOR CONSTRUCTION OF A WAREHOUSE STORAGE BUILDING ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2122-025-0620 AND FOR SITE IMPROVEMENTS TO THE PROPERTY AT 14985 NW 27TH AVENUE, IDENTIFIED BY FOLIO 08-2122-025-0550, IN THE I-1 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing.

(Inaudible), 8752 SW 143rd Street, Miami, FL, said he is the architect for this project and they have gone through all of the parameters for complying with the City's criteria.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Vice Mayor Davis said he would like to see more of the Moorish architecture that the City is known for included in the design plans.

Commissioner Kelley agreed with the vice mayor.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT WITH HIGH SEAS TRADING COMPANY, FOR CONSTRUCTION OF A WAREHOUSE STORAGE BUILDING ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2122-025-0620 AND FOR SITE IMPROVEMENTS TO THE PROPOERTY AT 14985 NW 27TH AVENUE, IDENTIFIED BY FOLIO 08-2122-025-0550, IN THE I-1 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Mayor Pigatt asked if it is possible to include language in the agreements that aide in the City further benefitting from the business owners like providing internships for youth.

City Attorney Brown said that the City can ask the owners, but it cannot be required.

Commissioner Bass said if the City asks nicely, they may be inclined to agree with what is requested.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. **FIRST READING ORDINANCE(S):**

B. **SECOND READING ORDINANCE(S)/PUBLIC HEARING:**

C. **RESOLUTIONS:**

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said he has his report, but with respect to time, he will e-mail it to the commission.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Commissioner Kelley announced the Women's History Month Luncheon next Wednesday honoring women in the community who make a difference and recognize the female employees; the Census will be at Meet Me Monday next month to speak with the residents; lastly, there will be prayer tomorrow at 6:00 p.m. on the lawn of historic city hall.

City Attorney Brown announced an executive session to be held for the purpose of discussing Suarez v. City of Opa-locka and Barry E. Mukamal v. City of Opa-locka at a time and date agreed upon by the commission.

Mayor Pigatt suggested Monday, March 4, 2019 at 5:00 p.m. for the executive session.

The dais agreed.

20. OFFICIAL BOARD APPOINTMENTS:

Commissioner Kelley asked the clerk to schedule the training for the board members so that they will not change their minds about serving.

City Clerk Flores advised that the Advisory Board Training is scheduled for Thursday, March 28, 2019.

Mayor Pigatt appointed Floralba Wright to the Civil Service Board. He asked everyone to apply for the remaining board seats so they can have the opportunity to make a difference in their community.

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke to adjourn the meeting at 10:07 p.m.

MAYOR

ATTEST:



CITY CLERK